

EMERGENCY PROVISIONS

THREE EMERGENCIES, THREE CONSTITUTIONAL → ARTICLE 352 TRIGGER, APPROVAL → NATIONAL EMERGENCY EFFECTS AND → ARTICLES 358 AND 359 → ARTICLE 356 MECHANICS AND → S.R. BOMMAI (1994), JUDICIAL REVIEW AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

THREE EMERGENCIES, THREE CONSTITUTIONAL FAILURES

THREE EMERGENCIES, THREE CONSTITUTIONAL FAILURES

PART XVIII

ARTICLES 352-360

ARTICLE 352

WAR, EXTERNAL AGGRESSION OR ARMED REBELLION

ARTICLE 356

STATE GOVERNMENT CANNOT BE CARRIED ON ACCORDING TO CONSTITUTION

ARTICLE 360

CONSTITUTIONAL BASIS / ARTICLE

• PART XVIII: ARTICLES 352-360

• Article 352 → war, external aggression or armed rebellion

POWER / PROCEDURE

• Article 356 → State government cannot be carried on according to Constitution

• Article 360 → threat to financial stability or credit of India / any part

CHECK / LIMIT

• THE SAME WORD 'EMERGENCY' HIDES DIFFERENT RULES trigger

• territorial effect

FEDERAL / RIGHTS IMPACT

• rights effect

• CORE PURPOSE preserve constitutional government in crisis, not replace limited government permanently.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Emergency provisions preserve the constitutional order by temporarily centralising authority; they do not create an extra-constitutional regime.

01

STAGE 01

ARTICLE 352 TRIGGER, APPROVAL AND REVOCATION

ARTICLE 352 TRIGGER, APPROVAL AND REVOCATION

IMMINENT DANGER MAY JUSTIFY PROCLAMATION

CABINET DECISION IN WRITING

PROCLAMATION FOR WHOLE OR PART APPROVAL WITHIN ONE MONTH

LOK SABHA DISAPPROVAL MECHANISM AND PRESIDENTIAL REVOCATION

44TH AMENDMENT CONTROLS INTERNAL DISTURBANCE

ARMED REBELLION WRITTEN CABINET ADVICE + SPECIAL MAJORITY +

ARTICLE 352 IS NOT APPROVED BY A SIMPLE MAJORITY

IMMINENT DANGER MAY JUSTIFY PROCLAMATION

Cabinet decision in writing → President → proclamation for whole or part approval within one

in each House renewal every six months

Lok Sabha disapproval mechanism and presidential revocation

44TH AMENDMENT CONTROLS internal disturbance = armed rebellion written Cabinet advice + special majority +

CONSTITUTIONAL BASIS / ARTICLE

• IMMINENT DANGER MAY JUSTIFY PROCLAMATION

• Cabinet decision in writing → President → proclamation for whole or part approval within one month special majority

POWER / PROCEDURE

• in each House renewal every six months

• Lok Sabha disapproval mechanism and presidential revocation

CHECK / LIMIT

• 44TH AMENDMENT CONTROLS internal disturbance → armed rebellion written Cabinet advice + special majority + stronger Lok Sabha trigger

• Article 352 is not approved by a simple majority and is not indefinite without renewal.

FEDERAL / RIGHTS IMPACT

• IMMINENT DANGER MAY JUSTIFY PROCLAMATION

• Cabinet decision in writing → President → proclamation for whole or part approval within one month special majority

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "Internal disturbance" remains in Article 355 but is no longer a National Emergency ground.

02

STAGE 02

NATIONAL EMERGENCY EFFECTS AND HISTORICAL EVOLUTION

NATIONAL EMERGENCY EFFECTS AND HISTORICAL EVOLUTION

UNION EXECUTIVE DIRECTIONS EXPAND

PARLIAMENT GAINS STATE LIST COMPETENCE WHILE STATES CONTINUE

ARTICLE 354 MAY MODIFY REVENUE-DISTRIBUTION OPERATION

LOK SABHA AND ASSEMBLY TERMS MAY BE EXTENDED IN

1962 EXTERNAL AGGRESSION

1971 EXTERNAL AGGRESSION

1975 INTERNAL EMERGENCY

Union executive directions expand

Parliament gains State List competence while States continue

Article 354 may modify revenue-distribution operation

Lok Sabha and Assembly terms may be extended in one-year increments

1962 external aggression → 1971 external aggression → 1975 internal emergency

CONSTITUTIONAL BASIS / ARTICLE

• Union executive directions expand

• Parliament gains State List competence while States continue

POWER / PROCEDURE

• Article 354 may modify revenue-distribution operation

• Lok Sabha and Assembly terms may be extended in one-year increments

CHECK / LIMIT

• 1962 external aggression → 1971 external aggression → 1975 internal emergency

• AMENDMENT ARC

FEDERAL / RIGHTS IMPACT

• 38th immunity → 42nd centralisation → 44th review, liberty and procedure safeguards

• VERDICT emergency federalisation is temporary; constitutional identity and review survive.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: An order cannot extend beyond the financial year in which the proclamation ceases and must be laid before Parliament.

03

STAGE 03

ARTICLES 358 AND 359: RIGHTS FIREWALL

ARTICLES 358 AND 359

RIGHTS FIREWALL

ARTICLE 358 ARTICLE 359 AUTOMATIC OPERATION PRESIDENTIAL ORDER REQUIRED

ARTICLE 19 ONLY SPECIFIED PART III ENFORCEMENT WAR

EXTERNAL AGGRESSION ONLY ANY ARTICLE 352 GROUND EMERGENCY-RELATED LAW

PERMANENT LIBERTY CONTROL

ARTICLES 20 AND 21 CANNOT BE SUSPENDED THROUGH ARTICLE

CASE ARC

ARTICLES 20 AND 21 CANNOT BE SUSPENDED THROUGH ARTICLE

CASE ARC

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 358 ARTICLE 359 automatic operation presidential order required

Article 19 only specified Part III enforcement war / external aggression only any Article 352 ground emergency-related law

nexus after 44th order states scope and duration

POWER / PROCEDURE

PERMANENT LIBERTY CONTROL

Articles 20 and 21 cannot be suspended through Article 359.

CASE ARC

CHECK / LIMIT

ADM Jabalpur (1976) majority denied habeas route → Khanna dissent

K.S. Puttaswamy (2017) rejects the majority's constitutional approach.

TRAP: rights are not 'abolished'; enforcement and legal consequences must be stated precisely.

FEDERAL / RIGHTS IMPACT

PERMANENT LIBERTY CONTROL

CONSTITUTIONAL BASIS / ARTICLE

• ARTICLE 358 ARTICLE 359 automatic operation presidential order required

• Article 19 only specified Part III enforcement war / external aggression only any Article 352 ground emergency-related law

• nexus after 44th order states scope and duration

POWER / PROCEDURE

• PERMANENT LIBERTY CONTROL

• Articles 20 and 21 cannot be suspended through Article 359.

• CASE ARC

CHECK / LIMIT

• ADM Jabalpur (1976) majority denied habeas route → Khanna dissent

• K.S. Puttaswamy (2017) rejects the majority's constitutional approach.

• TRAP: rights are not 'abolished'; enforcement and legal consequences must be stated precisely.

FEDERAL / RIGHTS IMPACT

• PERMANENT LIBERTY CONTROL

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Protection against retrospective penal law/double jeopardy/self-incrimination and life/personal liberty therefore remain judicially enforceable.

04

STAGE 04

ARTICLE 356 MECHANICS AND CONSTITUTIONAL CONSEQUENCES

ARTICLE 356 MECHANICS AND CONSTITUTIONAL CONSEQUENCES

GOVERNOR REPORT OR OTHERWISE OBJECTIVE MATERIAL

PRESIDENT'S PROCLAMATION

PARLIAMENTARY APPROVAL WITHIN TWO MONTHS SIX-MONTH PERIODS MAXIMUM THREE

ARTICLE 352 EMERGENCY CONDITION + ECI CERTIFICATION CONDITION

PRESIDENT ASSUMES STATE EXECUTIVE FUNCTIONS

PARLIAMENT EXERCISES STATE LEGISLATIVE POWER

HIGH COURT POWERS CANNOT BE ASSUMED

GOVERNOR REPORT OR OTHERWISE objective material → President's proclamation → parliamentary approval within two months

three years beyond one year: Article 352 emergency condition + ECI certification condition

President assumes State executive functions

Parliament exercises State legislative power

High Court powers cannot be assumed

CONSTITUTIONAL BASIS / ARTICLE

• GOVERNOR REPORT OR OTHERWISE objective material → President's proclamation → parliamentary approval within two months six-month periods maximum

• three years beyond one year: Article 352 emergency condition + ECI certification condition

POWER / PROCEDURE

• President assumes State executive functions

• Parliament exercises State legislative power

CHECK / LIMIT

• High Court powers cannot be assumed

• FLOOR PRINCIPLE loss of majority is ordinarily tested in the House, not decided by private assessment.

FEDERAL / RIGHTS IMPACT

• GOVERNOR REPORT OR OTHERWISE objective material → President's proclamation → parliamentary approval within two months six-month periods maximum

• three years beyond one year: Article 352 emergency condition + ECI certification condition

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Assembly may be suspended or dissolved, but S.R. Bommai (1994) bars irreversible dissolution before parliamentary approval.

05

STAGE 05

S.R. BOMMAI (1994), JUDICIAL REVIEW AND THE MISUSE DEBATE

S.R. BOMMAI (1994), JUDICIAL REVIEW AND THE MISUSE DEBATE

S.R. BOMMAI (1994) CONTROL BOARD FEDERALISM IS BASIC STRUCTURE

ARTICLE 356 SATISFACTION IS REVIEWABLE

UNION MUST DISCLOSE RELEVANT MATERIAL MAJORITY ORDINARILY TESTED ON

ASSEMBLY DISSOLUTION SHOULD AWAIT PARLIAMENTARY APPROVAL COURT MAY RESTORE

ASSEMBLY SECULARISM IS BASIC STRUCTURE

RAMESHWAR PRASAD (2006) PRE-EMPTIVE DISSOLUTION BASED ON SPECULATIVE HORSE-TRADING MATERIAL

WHY USE DECLINED JUDICIAL REVIEW + COALITION ERA +

CONSTITUTIONAL BASIS / ARTICLE

• S.R. BOMMAI (1994) CONTROL BOARD federalism is Basic Structure

• Article 356 satisfaction is reviewable

POWER / PROCEDURE

• Union must disclose relevant material majority ordinarily tested on the floor

• Assembly dissolution should await parliamentary approval court may restore the dismissed government / Assembly secularism is Basic Structure

CHECK / LIMIT

• RAMESHWAR PRASAD (2006) pre-emptive dissolution based on speculative horse-trading material invalid.

• WHY USE DECLINED judicial review + coalition era + regional parties + political cost + commission norms.

FEDERAL / RIGHTS IMPACT

• S.R. BOMMAI (1994) CONTROL BOARD federalism is Basic Structure

• Article 356 satisfaction is reviewable

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Court did not restore the dissolved Assembly because elections had advanced; the case still demonstrates review of Governor-based material.

06

STAGE 06

ARTICLE 360: FINANCIAL EMERGENCY WITHOUT FABRICATED HISTORY

ARTICLE 360

FINANCIAL EMERGENCY WITHOUT FABRICATED HISTORY

TRIGGER FINANCIAL STABILITY OR CREDIT OF INDIA OR ANY

PARLIAMENTARY APPROVAL WITHIN TWO MONTHS

SIMPLE-MAJORITY CONTROL ONCE APPROVED, NO SIX-MONTH RENEWAL CYCLE IS

POSSIBLE DIRECTIONS FINANCIAL PROPRIETY CANONS SALARY

ALLOWANCE REDUCTION, INCLUDING JUDGES

STATE MONEY AND FINANCIAL BILLS RESERVED FOR PRESIDENTIAL CONSIDERATION

President → parliamentary approval within two months → simple-majority control once approved, no six-month renewal

POSSIBLE DIRECTIONS financial propriety canons salary / allowance reduction, including judges

State Money and financial Bills reserved for presidential consideration

CONSTITUTIONAL BASIS / ARTICLE

• TRIGGER financial stability or credit of India or any part is threatened

• President → parliamentary approval within two months → simple-majority control once approved, no six-month renewal cycle is prescribed

POWER / PROCEDURE

• POSSIBLE DIRECTIONS financial propriety canons salary / allowance reduction, including judges

• State Money and financial Bills reserved for presidential consideration

CHECK / LIMIT

• STATUS CONTROL

• India has never proclaimed a Financial Emergency.

FEDERAL / RIGHTS IMPACT

• Do not convert economic stress, Article 293 conditions or fiscal rules into Article 360.

• TRIGGER financial stability or credit of India or any part is threatened

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Presidential satisfaction is subject to constitutional judicial review after repeal of the 38th Amendment immunity.

07

STAGE 07

COMPARISON MATRIX, ALTERNATIVES AND COMMISSION SAFEGUARDS

COMPARISON MATRIX, ALTERNATIVES AND COMMISSION SAFEGUARDS

ARTICLE 352 ARTICLE 356 ARTICLE 360 NATIONAL SECURITY STATE

CREDIT SPECIAL MAJORITY SIMPLE MAJORITY SIMPLE MAJORITY SIX-MONTH RENEWAL

LAST-RESORT LADDER WARNING

FLOOR TEST

JUDICIAL REMEDY

TARGETED ORDINARY LAW

EMERGENCY ONLY WHEN CONSTITUTIONAL PRECONDITIONS ARE MET

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 352 ARTICLE 356 ARTICLE 360 national security State constitutional failure financial stability / credit special majority simple

majority simple majority six-month renewal six-month renewal no periodic renewal in text rights consequences State machinery effect fiscal

POWER / PROCEDURE

LAST-RESORT LADDER warning → consultation → floor test / judicial remedy → targeted ordinary law

emergency only when constitutional preconditions are met

CHECK / LIMIT

SARKARIA / PUNCHHI speaking material, neutral Governor, floor test, restrained and localised response.

ARTICLE 352 ARTICLE 356 ARTICLE 360 national security State constitutional failure financial stability / credit special majority simple

FEDERAL / RIGHTS IMPACT

majority simple majority six-month renewal six-month renewal no periodic renewal in text rights consequences State machinery effect fiscal

LAST-RESORT LADDER warning → consultation → floor test / judicial remedy → targeted ordinary law

CONSTITUTIONAL BASIS / ARTICLE

• ARTICLE 352 ARTICLE 356 ARTICLE 360 national security State constitutional failure financial stability / credit special majority simple

• majority simple majority six-month renewal six-month renewal no periodic renewal in text rights consequences State machinery effect fiscal

POWER / PROCEDURE

• LAST-RESORT LADDER warning → consultation → floor test / judicial remedy → targeted ordinary law

• emergency only when constitutional preconditions are met

CHECK / LIMIT

• SARKARIA / PUNCHHI speaking material, neutral Governor, floor test, restrained and localised response.

• ARTICLE 352 ARTICLE 356 ARTICLE 360 national security State constitutional failure financial stability / credit special majority simple

FEDERAL / RIGHTS IMPACT

• majority simple majority six-month renewal six-month renewal no periodic renewal in text rights consequences State machinery effect fiscal

• LAST-RESORT LADDER warning → consultation → floor test / judicial remedy → targeted ordinary law

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Official commemoration of Emergency abuse may strengthen memory but is not a legal safeguard.

08

STAGE 08

PYQ TRAPS AND THE EMERGENCY ANSWER SPINE

PYQ TRAPS AND THE EMERGENCY ANSWER SPINE

PRELIMS CONTROLS ARMED REBELLION

INTERNAL DISTURBANCE

ARTICLE 358

ARTICLE 359

ARTICLES 20-21 REMAIN PROTECTED

ARTICLE 356 EXTENSION CONDITIONS APPLY AFTER ONE YEAR

ARTICLE 360 HAS NEVER BEEN USED

PRELIMS CONTROLS armed rebellion != internal disturbance

Article 358 != Article 359

Articles 20-21 remain protected

Article 356 extension conditions apply after one year

Article 360 has never been used

CONSTITUTIONAL BASIS / ARTICLE

• PRELIMS CONTROLS armed rebellion != internal disturbance

• Article 358 != Article 359

• Articles 20-21 remain protected

• Article 356 extension conditions apply after one year

POWER / PROCEDURE

• Article 360 has never been used

• PYQ ROUTES

• 2018 financial emergency

• 2018 Article 356

CHECK / LIMIT

• 2023 security provisions

• 2023 decline of Article 356 use

• supporting 2020 centralisation

• MAINS SPINE state trigger → procedure → effect → 44th safeguard / S.R. Bommai (1994)

FEDERAL / RIGHTS IMPACT

• misuse risk → alternative → emergency power remains exceptional and reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "Cabinet" here means the Council consisting of the Prime Minister and Cabinet-rank ministers; the Prime Minister alone cannot constitutionally trigger Article 352.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

16. SAFETY-VALVE VERSUS CONSTITUTIONAL DICTATORSHIP - OPTIONAL

17. CONSTITUTIONAL DICTATORSHIP AS A DESIGN PROBLEM - OPTIONAL

[ANALYSIS] BOTH SIDES ARE PARTLY CORRECT

A CONSTITUTION NEEDS CRISIS CAPACITY, BUT UNCHECKED CRISIS POWER

ORDER IT CLAIMS TO PRESERVE.

[ANALYSIS] THE MODERN ANSWER SHOULD JUDGE THE PROVISIONS TOGETHER

EMERGENCY POWER CONCENTRATES AUTHORITY TEMPORARILY UNDER LEGAL FORMS.

OPTIONAL DOCTRINE / CASE

• 16. Safety-valve versus constitutional dictatorship - optional

• 17. Constitutional dictatorship as a design problem - optional

• [ANALYSIS] Both sides are partly correct: a Constitution needs crisis capacity, but unchecked crisis power can destroy the

• order it claims to preserve.

ADVANCED LIMIT

• [ANALYSIS] The modern answer should judge the provisions together with 44th Amendment safeguards, judicial review and political federalism.

• Emergency power concentrates authority temporarily under legal forms.

• The risk is normalisation: crisis standards may become ordinary governance.

• Procedural safeguards, sunset/renewal, reasons, parliamentary opposition, judicial access and protected rights prevent normalisation.

COMPARATIVE NUANCE

• India's strongest design choice is not merely special-majority approval but non-suspendable Articles 20 and 21.

• The remaining weakness is information asymmetry: Parliament and courts depend on executive material concerning threat and State breakdown.

• Safety-valve versus constitutional dictatorship - optional Safety-valve versus constitutional dictatorship - optional denotes the constitutional rules and institutional

• links organised around Critic/defender Argument use.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.